

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SOUTH AFRICA

Complete Community Opposition How-To

This is a practical manual for rural and customary communities, township and civic groups, farmers, fishers, and citizens' organisations who wake up to find that land, a coast, a river, or an airshed they depend on has been opened to something destructive — a mine, a coal or gas power plant, a quarry, a landfill, a large industrial or property scheme. It explains how South Africa's approval system for large projects actually works, where the real openings are, what to document, how to organise, and how to use the levers South African law and South Africa's own history of community resistance provide. It does not promise that any project can be stopped. It offers a clear-eyed method that gives you the best possible chance.

INTRODUCTION & FRAMEWORK

Why This Matters

Across South Africa, communities discover that a place they live from — customary land their families have held for generations, a coastline and its fisheries, a river, a grazing commonage, the air of a township hemmed by industry — has been licensed to a company or a state project, often through decisions taken in a provincial or national office and without the people on the land being genuinely consulted, let alone asked for their consent. The first sign is often the survey pegs, a notice of a public meeting few could reach, the drilling rigs and earthmovers, or the quiet news that an environmental authorisation or a mining right has been granted to a company most in the affected community had never heard of.

South Africa's situation is, in one crucial respect, hopeful. This is a country of intense extractive and industrial pressure — coal, gold, platinum, heavy-mineral sands, gas, and the vast power and water infrastructure that serves them — but it is also a country with one of the strongest environmental and rights-based legal frameworks in the world, and a documented history of communities using it to win. The single most important fact for any South African community to hold onto is this: **a small rural community on the Wild Coast took on a mining company and its government backers and won a court ruling that they cannot be mined without their consent — not merely their consultation, but their free, prior, and informed consent.** That is not a slogan. It is the record of Xolobeni, and it is the ground this guide stands on.

The struggle that teaches both truths a community must hold at once is the fight of the Amadiba community at Xolobeni, in the Eastern Cape. When an Australian mining company sought a right to mine titanium and other heavy minerals from the dunes of their ancestral land, the community — organised as the Amadiba Crisis Committee — resisted for years. And in November 2018, in *Balení and Others v Minister of Mineral Resources*, the High Court in Pretoria ruled in their favour: it held that the community holds informal rights to their land under the Interim Protection of Informal Land Rights Act, that granting a mining right would "deprive" them of those rights, and that under that Act such a deprivation requires the community's consent — so the Minister could not lawfully grant the mining right without it. A community of a few hundred subsistence households had established, in South African law, that a community with customary land rights can say no to a mine. That is real power, and it is South African. The detail is worth holding onto. The Umgungundlovu community — some seventy to seventy-five households, around six hundred people under the Amadiba traditional authority — had lived on that Wild Coast land since the early 1800s. The company, Transworld Energy and Mineral Resources, a subsidiary of an Australian-listed miner, wanted its titanium-rich dunes. The government argued that because the state is the custodian of all minerals, and because the mining law requires only that communities be "consulted," the community had no right to refuse. Judge Basson rejected that: reading the mining law and the informal-land-rights law together against the history of dispossession, she held that a mining right is a deprivation of the community's land rights, and that the informal-land-rights law requires their consent. The Constitutional Court, in a parallel case decided around the same time, affirmed the same consent principle — so the lever is anchored at the highest level.

The second truth is sobering. **The victory was hard-won and remains under threat, and the struggle has cost lives.** The Xolobeni community was divided by the company's inducements, with some leaders co-opted; the fight took years; a later law on traditional leadership has raised fears that traditional authorities might purport to consent on a community's behalf; and, most gravely, the chairperson of the Amadiba Crisis Committee, Sikhosiphi "Bazooka" Rhadebe, was murdered in 2016. South Africa shows both what a determined community and South Africa's remarkable law can achieve — a mine held off by a community's right to consent, a coal plant's authorisation set aside for ignoring the climate — and how dangerous and drawn-out the fight can be when powerful mining and industrial interests, and sometimes the state, back the project.

Underneath both truths is the framework this guide will help you use: **South Africa's Constitution guarantees everyone the right to an environment not harmful to their health or well-being, and to have it protected for present and future generations; its framework environmental law requires environmental authorisation with genuine public participation and lets any person litigate in the public interest to protect the environment; its law on informal land rights requires the consent of communities before they are deprived of customary land; it has a strong access-to-information law, independent courts up to a Constitutional Court, and a vigorous environmental-justice movement and free press.** Protest, petition, and litigation are lawful. That combination is what this guide is about.

The Strategic Framework

The core idea is simple: **a destructive project is not a single event but a chain of decisions and dependencies, and a chain can be broken at its weakest link.** A large project in South Africa needs an environmental authorisation under the framework environmental law, granted only after genuine public participation; a mine needs a mining right and, where customary land is involved, the community's consent; it depends on water-use and other licences; it must respect the constitutional environmental right that any person can enforce; it must survive the courts, up to the Constitutional Court; and it must avoid the scrutiny of a free press and a watchful public. Each is a potential point of leverage.

Your task is to find the link you can reach. Sometimes it is the environmental authorisation and a defect in it — an impact never assessed, a public participation that was a formality, exactly the flaws that have undone authorisations before. Sometimes it is the consent your community must give under the informal-land-rights law, the very lever that won Xolobeni. Sometimes it is the water licence, or the constitutional right itself, which any person can enforce in court. And often it is the press and public attention, and the pressure on a company's investors, that a project cannot escape.

Critical Caveat: Which Situation Are You In?

Throughout this guide you will find honest assessments, because a guide that promised any project can be stopped by the right petition would be lying to you.

Where a project needs the consent of a community with informal land rights, or its environmental authorisation has a real defect, and you can organise and reach the courts and the press, South Africa's levers are genuine. Xolobeni is the proof that a community's consent can stop a mine; the courts have set aside authorisations that ignored key impacts.

Where powerful interests and sometimes the state back the project, where the authorisation is sound, and where the fight is long and can turn dangerous, the outright stop is hard, and resistance can carry grave personal risk. The years-long Xolobeni battle, the co-option of leaders, and the murder of an activist are the warning. There the levers still matter, but you must weigh the odds honestly and think in terms of consent asserted, a set-aside or conditioned authorisation, delay, safeguards, and exposure as much as an easy stop.

Much of this guide is designed to help you judge which situation you are in.

How to use this guide

Read the whole thing once before acting. Read the legal, organising, and tilted-system sections with particular care, because in South Africa the environmental authorisation and its public participation, the consent of communities with informal land rights, the constitutional environmental right, and the courts are the sharpest levers, and the backing of powerful interests shapes everything. Two principles run throughout. First, **use the consent and participation rights the law gives you:** the mandatory public participation, the constitutional right any person can enforce, and — for communities on customary land — the consent the informal-land-rights law requires. Second, **combine the strands:** documentation, the authorisation challenge, the consent right, the courts, the press, and public attention work far better together than any one alone — exactly as the Xolobeni campaign combined them.

HOW THE SYSTEM WORKS

To break the chain you must understand it. This section explains the levels of decision, the journey a project takes from authorisation to construction, how to follow the money behind it, and who is supposed to be watching.

The Levels of Decision

Decisions about large projects in South Africa are made at several levels, and the level determines where you push.

National level. The national environment department administers the framework environmental law and, for many large projects, is the competent authority that grants or refuses the environmental authorisation. Mining rights are granted nationally by the mineral-resources department, which treats the state as custodian of the country's minerals. National laws — the framework environmental management act, the mineral-resources act, the informal-land-rights act, the water act — set the framework the whole system follows.

Provincial level. Provincial environment departments are the competent authority for many other projects, and provincial authorities administer much planning and land use. Appeals against many environmental authorisations go to the relevant provincial MEC or the national Minister. The province is often where a decisive administrative decision or appeal is taken.

Local (municipal) and community level. Municipalities control land-use planning, zoning, and many local approvals, and a project must usually fit the municipal spatial framework. For communities holding land under customary or informal tenure, the **community itself** — deciding by its own custom — is the body whose consent the informal-land-rights law requires before it can be deprived of that land. This is both where the harm lands and where your organising begins.

The point: match your effort to the level that holds the decision you are trying to affect. The environmental authorisation and the mining right are national or provincial; planning and zoning are municipal; and the consent of a community with informal land rights is exercised by the community itself.

A Project's Journey — and Where It Can Be Stopped

A large project typically moves through recognisable stages. Each is a potential intervention point.

1. Application and scoping. The proponent applies for environmental authorisation and, for a mine, a mining right, and the scope of the required assessment is set. *Intervention point:* whether the assessment's scope covers the impacts that matter, and whether the project should have been assessed at the most rigorous level.

2. The environmental impact assessment and public participation. The proponent's consultants prepare the assessment, which by law must include genuine public participation — notice, access to the reports, and a real opportunity for affected people to comment. *Intervention point:* the quality of the assessment — its treatment of water, health, livelihoods, biodiversity, and climate — and, crucially, whether the public participation genuinely happened; a hollow participation is a defect that can undo an authorisation.

3. The environmental authorisation and the mining right. The competent authority grants or refuses the authorisation, with conditions, and the mineral-resources department decides the mining right. *Intervention point:* whether the authorisation was lawfully granted on a sound assessment and genuine participation, and — for a mine on customary land — whether the community's consent was obtained; both can be challenged.

4. Water use, land, and other licences. A water-use licence, land access or acquisition, and other permits follow. *Intervention point:* the water licence in a water-scarce country, and the consent or acquisition of land, are often decisive.

5. Construction and operation. The project is built and run. *Intervention point:* whether it complies with its authorisation conditions and the law — a documented violation is leverage, and the constitutional right lets any person go to court to stop ongoing harm.

A word on how the assessment itself is structured, because its weak points are your openings. Depending on the scale of the project, the framework law requires either a shorter "basic assessment" or, for larger projects, a full scoping and environmental impact assessment, culminating in an environmental-management programme that is meant to bind the project once it operates. Both are prepared by an environmental assessment practitioner paid by the proponent — a structural tension worth keeping in mind — and both must, by law, be built on genuine public participation. The framework law also lays down a set of national environmental-management principles that decisions must serve: that public participation must be promoted, that a risk-averse and cautious approach be applied where impacts are uncertain, and that the polluter must pay. Each principle is a standard against which a defective decision can be measured.

The chain has many links. Your job is to find the one nearest to hand.

Follow the Money and the Permissions

Behind every project is a structure of ownership, finance, and permission you can map — and mapping it tells you where the pressure points are.

Who is the proponent, and who owns it? The project's own documents, company records, and stock-exchange

disclosures reveal who is behind it and who controls it. Many South African projects involve listed mining houses, foreign multinationals, or state entities; ownership determines reputational exposure and which levers apply — the Xolobeni miner was a foreign-listed company sensitive to its investors.

What permissions does it need, and which does it lack? Map the environmental authorisation, the mining right, the water-use licence, the land, and the municipal approvals. The permission the project still needs — an authorisation under challenge, community consent not obtained, a water licence pending — is where it is most vulnerable.

Who is financing it? Trace the lenders and investors. Large South African projects depend on banks, listed investors, and sometimes development financiers, each with environmental and social standards and reputational concerns. A coal project in particular runs against a global tide of lenders withdrawing from coal. Following the money reveals further points of leverage — and financiers have walked away from projects that became too controversial. This is worth pursuing deliberately. Large South African projects depend on the big commercial banks, on listed investors, and sometimes on development-finance institutions, several of which have public environmental, social, and climate commitments and their own complaints channels. A coal or gas project in particular now runs against a global withdrawal of lenders and insurers from fossil fuels, so a well-documented campaign may find the project's weakest link is not a South African permit at all but a financier unwilling to bear the reputational and climate risk. Mapping the money is therefore a search for one of the most decisive levers you have.

Who Is Supposed to Be Watching

Several institutions exist to check power, and each is a potential ally or venue.

The national and provincial environment departments administer the authorisation system and are meant to monitor compliance — and can be pressed, formally and publicly, to do so, including through the internal appeal to the Minister or MEC.

The courts — the High Court, the Supreme Court of Appeal, and the Constitutional Court — enforce the constitutional environmental right and review unlawful authorisations, and South African environmental jurisprudence is strong.

The Human Rights Commission and the Public Protector can take up rights violations and administrative failures. These bodies offer routes that are cheaper and less adversarial than court, and useful for creating an official record: the Human Rights Commission can investigate the violation of environmental and other rights and the treatment of defenders, while the Public Protector can investigate maladministration and improper conduct by the state. Their findings, even where not binding, can add real weight to a later court case and shift the political ground beneath a project.

The environmental-justice organisations, public-interest law centres, and the free press are experienced, well-connected, and often your fastest route to expertise and national attention — the Xolobeni community's allies are the standing example.

No single one of these is a guarantee. Together they are the architecture of accountability this guide teaches you to use.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns from how South African and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the project needs the consent of a community with informal land rights, whether the environmental authorisation has a real defect, whether you can reach the courts and the press, and how firmly powerful interests and the state back the project. Where consent is required or the authorisation is defective and the world is watching, South Africa's levers are real; where the process was sound and powerful interests are determined, discount the figures and think in terms of consent, a set-aside or conditioned authorisation, delay, safeguards, and exposure.

Individual Step Success Rates

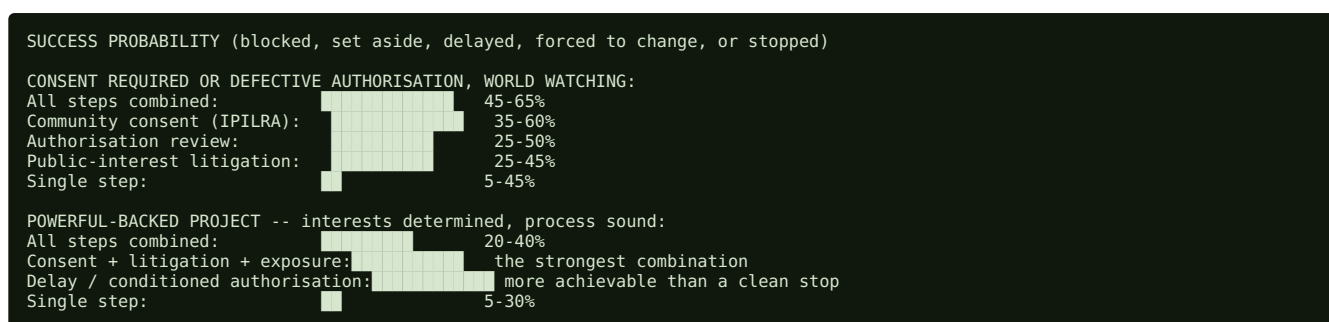
Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Public participation in the EIA	15-35%	during	low	On record; conditions or a redo

		review		
Asserting community consent (informal land rights)	35-60%	12-48 months	low-moderate	Consent required; mining right blocked
Environmental-authorisation appeal / review	25-50%	6-36 months	moderate	Authorisation set aside, remitted, or conditioned; delay
Constitutional / public-interest litigation	25-45%	12-48 months	moderate	Right enforced; project halted or reviewed; delay
Water-use licence challenge	20-45%	6-30 months	low-moderate	Water safeguards forced; project constrained
Documenting a legal violation (authorisation-condition breach)	25-45%	3-18 months	low	Breach exposed; leverage; possible sanction
Mass, connected public mobilisation	25-45%	6-36 months	low	Political cost; a project reconsidered
All steps combined (consent required or defective authorisation, world watching)	45-65%	12-36 months	low-moderate	Blocked, set aside, delayed, or forced to change
All steps combined (powerful-backed, process sound)	20-40%	12-48 months	low-moderate	Delayed, conditioned, exposed; rarely a clean stop

Key insight: all steps together beat any single one, and South Africa's real strengths are unusual — a **justiciable constitutional right** to an environment not harmful to health or well-being; **public participation** as a legal requirement whose breach can undo an authorisation; a **framework environmental law that lets any person litigate in the public interest**; an **informal-land-rights law requiring community consent** before deprivation of customary land, South Africa's most distinctive lever; a **strong access-to-information law**; and **independent courts up to a Constitutional Court**, with a **vigorous environmental-justice movement and free press**. Its constraints are **powerful mining and industrial interests**, a **state that backs strategic projects**, **participation sometimes reduced to a formality**, **internal divisions that companies exploit**, and real, sometimes lethal, **danger to those who resist**.

A note on cost: participating, documenting, and organising are inexpensive, and public-interest law centres and environmental-justice organisations have carried community cases to the highest courts without charge — the Xolobeni community was supported by exactly such allies. The expenditure that most changes outcomes is committed legal support and the reach of a sustained public campaign — both of which the Amadiba community marshalled over many years.

Effectiveness Visualization



How to read this honestly. The levers that most change outcomes in South Africa are **community consent and the courts**, reinforced by public-participation defects, the constitutional right, and public attention. Xolobeni shows the ceiling: a community's right to consent, established in court, holding off a mine. It also shows the floor: a fight that took years, split the community, and cost a leader his life. Most South African fights sit between them, and the honest lesson is that South Africa's rights and courts are real and have delivered outright wins — but against a powerful, state-backed project the realistic win is often consent asserted, an authorisation set aside or conditioned, delay, safeguards, and exposure as much as a clean, permanent stop.

Step Importance Ranking (When All Combined)

1. **Community consent under the informal-land-rights law** — where the project needs land held under customary or informal tenure, the community's consent is South Africa's strongest and most distinctive lever, as Xolobeni proved.
2. **The courts and the constitutional right** — the justiciable right to a healthy environment and the public-interest standing that let any person or organisation bring an environmental case.

3. **Documentation of the authorisation's defects and any violations** — the record, much of it obtainable through the access-to-information law, that grounds every other step.
4. **Public participation in the EIA** — the formal, legally required right that puts your case on the record and whose breach can undo an authorisation.
5. **Public mobilisation and the press** — the further fronts that raise the political cost, reach investors, and protect the campaign.

What South African Campaigns Actually Show

A few patterns recur. **Community consent over customary land is real, decisive power** — at Xolobeni, the High Court held in 2018 that a community with informal land rights must give its free, prior, and informed consent before a mining right can be granted over their land, not merely be consulted. **The courts enforce the environmental right and the assessment rules** — they have set aside an authorisation for a coal power plant because its climate-change impact was never properly assessed, showing that a defective assessment does not survive scrutiny. **Any person can litigate for the environment** — the framework law's broad standing lets communities and organisations bring public-interest cases without the barriers that defeat such suits elsewhere. **But powerful interests and the state back big projects** — the Xolobeni mine's backers were determined, the community was divided by inducements, and the fight ran for years. **And resistance can be lethal** — the murder of the Amadiba Crisis Committee's chairperson is a grave reminder of the danger. The through-line: **assert your community's consent over customary land, use the public participation and the constitutional right, challenge a defective authorisation in the courts, extract the record and document every defect, mobilise the press and the public — and expect a fight measured in consent asserted, authorisations set aside or conditioned, delay, safeguards, and exposure as much as a clean stop, while knowing that in South Africa a community once won the right to say no to a mine.**

STEP 1: TARGET IDENTIFICATION

Before you can fight a project, you must understand it precisely. Vague opposition to "the project" is weak; a specific challenge to a specific decision is strong. This step turns alarm into a target.

The Five Core Questions

Answer these five questions, in writing, as fully as you can. They convert a threat into a plan.

1. What exactly is the project, and who is behind it? Name the project, the proponent company, its owners and parent, and — if you can find it — the financiers. Is it a mine, a coal or gas plant, a quarry, a landfill, an industrial or property scheme? A listed mining house, a foreign multinational, a state entity? The precise identity determines which levers apply — a foreign-listed company opens investor and reputational pressure; a mine on customary land opens the consent lever.

2. Where exactly is it, and what protected features and rights does it touch? Get the boundaries and overlay them on what you know: Is it on land held under customary or informal tenure? On or near a protected area, a water source, a wetland, a coast and its fisheries, prime farmland? In an already-polluted airshed? This overlay is the single most important thing you can produce, because South Africa's strongest levers — community consent over informal land, the protection of water and sensitive areas — are triggered by exactly these features.

3. What stage is it at, and what decision is imminent? Has the proponent applied for environmental authorisation and a mining right? Is the assessment's public participation scheduled or past? Has the authorisation been granted, and is the internal-appeal window open? Is a water-use licence pending? Identify the next decision and its date, because the openings — the public participation, the strict appeal windows — are time-bound.

4. What does it need next that it does not yet have? Every project depends on permissions it has not all secured — an environmental authorisation under challenge, community consent not obtained, a water licence pending, land not yet acquired. The permission it still needs is where it is most vulnerable. A project awaiting its authorisation, its consent, or its water licence is far more contestable than one already built and running.

5. Who else is affected, and who already opposes it? List the affected households and communities, the farmers and fishers, the neighbouring settlements, and any traditional structures, civics, or public-interest lawyers already concerned. You are almost never alone, and South Africa has a dense network of environmental-justice and public-interest organisations. Knowing who shares the stake tells you who your coalition can be — and helps you guard against the division that companies exploit.

A Worked Example

Consider a rural community holding land under customary tenure who learn that a company has applied to mine heavy-mineral sands from the dunes and grazing land their families have held for generations.

Applying the five questions: **What and who** — a named company, perhaps foreign-listed, seeks a mining right; the community traces its ownership and investors. **Where** — the mine would sit on land the community holds under informal tenure, beside a coast and fisheries the community depends on; the overlay shows a direct threat to their land, water, and livelihoods. **Stage** — the mining right and environmental authorisation are being sought, and the public participation has been thin; no community consent has been obtained. **What it needs next** — the community's consent under the informal-land-rights law, and a lawful authorisation on a sound assessment; neither is secure. **Who else** — a few hundred households, the traditional structures, neighbouring communities, and public-interest lawyers and environmental-justice groups who know the Xolobeni precedent.

From those answers a strategy writes itself: **the project's decisive weakness is that it needs land the community holds under customary tenure, which cannot be taken without their consent** — exactly the Xolobeni lever — reinforced by any defect in the assessment and the threat to their coast and water. The community's first moves are to establish and record their informal land rights and their collective decision to withhold consent, to obtain the assessment and authorisation documents, to document the thin participation, and to bring in the public-interest lawyers and environmental-justice groups who won Xolobeni. That is a far stronger position than generalized objection — and it is the position from which the Amadiba community won.

STEP 2: DOCUMENTATION

Documentation is the foundation of everything that follows. A community that can prove what is happening — with dates, records, photographs, and official documents — is a community that can act. One that only has fears and rumours cannot. This step builds your evidentiary base in three layers.

Layer 1: The Official Record

The first layer is the paper the project itself generates and the state holds. This is what makes a challenge credible, because it is the government's and the company's own record used against the decision.

Assemble, as far as you can obtain them: the **environmental impact assessment** reports and the environmental-management programme; the record of the **public participation** the law requires — the notices, the registered interested parties, the comments and the responses; the **environmental authorisation** and its conditions; the **mining-right** application and grant, and any record of the community-consent process; the **water-use licence**; and the **municipal planning** approvals. Much of this you can obtain through the **access-to-information law**, which gives everyone a right to records held by the state and, in defined circumstances, by private bodies. The public-participation record deserves special attention: if the affected community was not genuinely reached and heard, or if the assessment ignored a central impact, those are defects at the heart of the authorisation.

Layer 2: The Physical and Environmental Reality

The second layer is the ground truth — what is actually happening and what is actually at stake, recorded in a way that will stand up.

Photograph and film the site and the activity, recording the date and location of every image: the survey pegs, the cleared land, the drilling, the dunes and grazing land, the coast, the affected homes. Map the project against what it threatens — the customary land, the water source, the wetland, the coast and fisheries, the protected area, the settlements. Record the environmental baseline while you still can: the state of the water, the dunes, the grazing, the fisheries, so that later damage can be shown against a documented starting point. Where you can, gather simple, dated measurements and repeat photographs from fixed points over time. This is the evidence that turns "we are worried" into "here is what is being destroyed, and here is where the law and our rights forbid it." Water repays particular attention in a country as dry as South Africa: record which springs, boreholes, rivers, and wetlands the community depends on, how they change with the seasons, and how many households and hectares each sustains, because a threat to scarce water is both a powerful argument and, through the separate water-use licence, a separate line of legal attack. Where the project is a mine or a coal plant, the impacts on air quality, on dust and health, and on the climate are now squarely part of what a lawful assessment must confront, and evidence on each strengthens the case.

Layer 3: The Human Impact

The third layer is the community's own record, and in South Africa — where customary land, subsistence farming, and fishing are inseparable from people's lives and dignity — it is powerful.

Collect statements from the affected households: who they are, what land, water, grazing, or fishery they depend on, what they stand to lose, and how they will be displaced or impoverished. Record the community's customary tenure, its history on the land, and its collective decision-making, because these carry real legal weight under the informal-land-rights law. Document the conduct of the public participation and of any consent process — whether people were genuinely informed and heard, or presented with a decision already made, or divided by inducements. Record the losses: lost land, lost grazing, lost fisheries, damaged health, damaged heritage. These human records do two things: they are evidence of harm and of the consent question for the courts, and they are the material of a media and mobilisation campaign that can reach the provincial capital, the national government, and the world — as the Xolobeni community's story did.

Keep everything organised, backed up, and dated. A shared, secured archive — copies in more than one place — protects your work and lets your allies and lawyers use it.

WHAT TO GATHER, AND WHERE TO FIND IT

This section is a practical checklist: the specific records that matter, and where in the South African system to look for them. Not all will be available for every project, but knowing what to ask for — and being seen to ask precisely — is itself a source of strength.

The environmental impact assessment and management programme. From the competent authority and the proponent's environmental consultants: the assessment reports and the environmental-management programme. Read them for what they study and what they omit — water, health, biodiversity, livelihoods, and climate.

The public-participation record. From the assessment file: the notices, the register of interested and affected parties, the comments submitted, and the responses. Compare it against reality — were the affected people genuinely reached and heard, or was it a formality? A hollow participation is a defect in the authorisation.

The environmental authorisation and its conditions. From the competent authority: the authorisation and every condition attached. The conditions matter twice — as evidence of the risks the authority itself recognised, and because their breach is a violation you can act on.

The mining right and the consent record. From the mineral-resources department: the mining-right or prospecting-right application and grant, and any record of consultation or consent. Whether a community holding informal land rights genuinely consented is often the decisive question, as it was at Xolobeni.

The water-use licence. From the water department: the water-use licence, the volumes, the sources, and the conditions. In a water-scarce country this is frequently a central vulnerability. A project that cannot secure a lawful, sustainable water supply cannot operate, so the water-use licence is worth scrutinising as closely as the environmental authorisation itself.

The municipal approvals. From the municipality: the land-use, zoning, and planning approvals, and whether the project conforms to the municipal spatial framework and any protected-area designations.

Ownership, finance, and violations. From company records, stock-exchange disclosures, financing announcements, and any compliance or inspection reports: who owns and finances the project, and any documented non-compliance. The financiers are often a decisive pressure point.

Using the access-to-information law. The access-to-information law gives everyone a right to records held by public bodies, and to records held by private bodies where they are needed to protect a right — which environmental records affecting your Section 24 right often are. Frame precise requests for the assessment, the participation record, the authorisation and its conditions, the mining right, and the water licence. The request itself both gathers evidence and puts officials on notice that the community is organised and watching; a refusal can be challenged.

The act of assembling this record changes how you are treated. A community that arrives with the assessment, the participation record, the authorisation conditions, and proof of its land rights is a community that authorities, courts, and the press take seriously.

STEP 3: BUILDING LOCAL OPPOSITION

Documentation gives you a case; organising gives you power. In South Africa, where community coalitions have taken on mining houses and won, a well-built coalition is your engine — and, given how companies exploit division, its unity is itself a weapon. This step builds it in four phases.

Phase 1: The Core Group

Start with a small, committed core — the households most directly affected, the people who know the land and water, and a few trusted, energetic organisers. This group does the early work: the documentation, the information requests, the mapping of allies. Keep it tight enough to move quickly and decide clearly, and make sure it includes people with standing — respected elders, customary leaders who stand with the community, civic figures — whose word carries weight locally. In South Africa the credibility of the affected community itself, especially a community defending its customary land, is your greatest asset; the core group exists to organise around it, not to substitute for it.

Phase 2: Broadening the Base

From the core, widen to the full circle of the affected: the surrounding households and communities, the farmers and fishers, the neighbouring settlements, and the local civics. Hold meetings where people can see the evidence and understand the stake — the map of the project over the land and water, the assessment, the authorisation conditions — and, for a community with informal land rights, hold the gatherings at which the community records its collective decision. Give people a clear, honest account of what is proposed, what it threatens, and what the community can lawfully do. The aim is a broad, informed, and united base — because companies routinely try to split a community with jobs, money, and co-opted leaders, and a visibly united community that has recorded its refusal is far harder to divide or dismiss.

Phase 3: Allies and Expertise

South Africa's decisive advantage for organised communities is its dense network of environmental-justice organisations, public-interest law centres, and community-rights groups. Reach out to them early. Public-interest law centres have taken environmental authorisations and mining rights to the High Court and the Constitutional Court, and won the Xolobeni consent ruling. Environmental-justice organisations bring national reach, technical expertise, and solidarity. Community-land and customary-rights organisations can help a community establish and assert its informal land rights and its consent. Scientists, hydrologists, and health and climate experts can supply the technical critique of an assessment that turns objection into evidence. Bring them in as partners, share your documentation, and let their experience shape your strategy — the Amadiba community's blend of local resolve, public-interest lawyers, and national allies is the model. It helps to understand the ecosystem you are joining. South Africa has public-interest environmental-law centres that litigate authorisations and mining rights up to the Constitutional Court, environmental-justice organisations rooted in the coalfields and industrial townships, land-rights and customary-tenure organisations that help communities register and defend informal rights, and human-rights bodies that take up the safety of defenders. Around them sit scientists, air-quality and water experts, and investigative journalists. A community's fight, plugged into this ecosystem early, gains lawyers, experts, national reach, and solidarity far beyond the affected households — the combination that carried Xolobeni from a coastal grievance to a landmark of South African law.

Phase 4: Structure and Sustainability

A fight against a large project is long — the Xolobeni battle ran for many years — and in South Africa it can be dangerous. Build a structure that can last: clear roles, a shared and secure archive, a way to make decisions, a means to keep the wider community informed and united, and a plan for the emotional, financial, and physical toll. Take safety seriously: environmental defenders in South Africa have been threatened and killed, and a community should go in with its eyes open, its solidarity firm, protective measures in place, and legal support on hand. Sustainability and unity are themselves forms of power: a project's backers count on communities tiring and splitting, and a coalition that endures and holds together is one that can see a case through the courts and outlast the pressure.

A Worked Coalition Example

Return to the coastal customary community. Their core group — a handful of affected households and respected community figures — gathers the assessment, the mining-right application, and a map of the mine over their land and coast, much of it obtained through information requests. They broaden the base by holding community gatherings where every household sees that the mine needs their land and that the law gives them the right to refuse consent; the

community records its collective decision to withhold consent, and guards against the company's inducements. They bring in public-interest lawyers and an environmental-justice organisation who recognise a Xolobeni-type case at once, supply expert critiques of the assessment, and prepare both the consent argument and a review of the authorisation. They build a durable, united structure — a documentation lead, a spokesperson, a legal liaison, a secure archive, and clear safety measures. Within months the community has moved from scattered worried households to a united coalition with expert allies, a legal theory, and a clear demand: no mining right without our consent, and we do not consent. That is the position from which the Amadiba community won.

STEP 4: LEGAL CHALLENGES

Law is one of South Africa's real levers — arguably its sharpest — because the Constitution gives the environment justiciable protection, the framework law opens the courthouse door wide, and the informal-land-rights law gives communities a genuine right of consent. This section explains the routes, honestly, including their limits.

Community Consent and Informal Land Rights

South Africa's most distinctive legal lever is the **Interim Protection of Informal Land Rights Act (IPILRA)**. It provides that a person or community holding an "informal right to land" — including customary and communal tenure — may not be **deprived** of that right without their **consent**, given by the community in accordance with its custom. In the Xolobeni case, the High Court held in 2018 that granting a mining right over such land amounts to a deprivation, and therefore requires the community's free, prior, and informed consent — not merely the "consultation" that the mineral-resources law demands. The court read the two laws together in light of the history of dispossession, and sided with the community. The lesson is precise: **where a project needs land held under customary or informal tenure, the community's consent is a legal precondition, and a community that establishes its rights and withholds consent holds a decisive lever.** This principle was reinforced, in the same period as Xolobeni, by the Constitutional Court in a separate mining-and-community dispute, which likewise held that the informal-land-rights law's consent requirement must be honoured — so a community stands not on a single High Court ruling but on a line of authority reaching the country's highest court. Be aware, though, of the counter-current: a later law on traditional and Khoi-San leadership has raised the concern that a traditional council might purport to conclude agreements over community land, which is precisely why recording the whole community's genuine decision, in accordance with custom, matters so much — it forecloses any claim that a leader consented in the community's name. Establishing and recording your informal land rights and your collective decision is therefore among the most important legal steps you can take. It is worth doing early, formally, and transparently — through a properly convened community gathering, minuted and attended by as much of the community as possible — so that the record of your decision is unimpeachable long before a company can try to manufacture a rival "consent."

The Constitutional Right and Public-Interest Standing

Kenya-style relaxed standing has a powerful South African cousin. **Section 24 of the Constitution guarantees everyone the right to an environment that is not harmful to their health or well-being, and to have the environment protected, for present and future generations**, through reasonable measures. And the framework environmental law opens standing very widely: any person may seek relief to protect the environment not only in their own interest, but in the interest of another who cannot act, in the interest of a group or class, or **in the public interest**. This means a community, or an organisation acting for it or for the environment itself, can bring a case without the barriers that defeat such suits elsewhere. These cases are heard by the ordinary courts, up to the Constitutional Court, whose environmental jurisprudence is strong — the courts have, for instance, set aside the authorisation of a coal-fired power plant because the climate-change impact had not been assessed, treating a defective assessment as fatal. That coal-plant decision — South Africa's first major climate-change judgment — established that a lawful assessment must grapple with a project's contribution to climate change, not ignore it, and it stands as a template for challenging any high-emitting project whose assessment looks past its climate impact. It also illustrates a wider truth about South African environmental law: the courts have been willing to hold the state and companies to the assessment the law actually requires, rather than the box-ticking they too often deliver.

Reviewing the Authorisation

Most project fights turn on the **environmental authorisation**. The framework law and its assessment regulations require genuine public participation and a proper assessment of impacts; where these were not met, the authorisation is vulnerable. There is usually first an **internal appeal** to the Minister or the relevant provincial MEC — a route that must be

used within a strict time limit — and then a **judicial review** in the High Court on the grounds that the decision was unlawful, procedurally unfair, or unreasonable. A defective public participation, an unassessed central impact, or ignored conditions are all grounds. The water-use licence and other permits can be challenged on similar lines. The review runs under the administrative-justice law, which entitles a person to challenge administrative action that was procedurally unfair, unlawful, or unreasonable — a broad and well-developed set of grounds. And the standing to bring it is unusually generous: the framework law expressly allows a person to act not only in their own interest but in the interest of a group, or in the public interest, or on behalf of those who cannot act for themselves, so that a community organisation or a public-interest law centre can carry the case. This combination — strong grounds of review, wide standing, and a justiciable constitutional right behind them — is what makes South African environmental litigation among the most powerful in the world.

The Honest Limits

Be clear-eyed. The consent right and the courts are real and powerful levers, and South Africa's have delivered outright wins — but litigation is uncertain and slow, and a determined proponent will appeal, sometimes to the Constitutional Court. The Xolobeni consent principle, though established, remains contested: a later law on traditional leadership has raised fears that traditional authorities might purport to consent for a community, and companies work hard to divide communities and manufacture "consent." The internal-appeal and review time limits are strict and easily missed. And the fight can turn dangerous. So use the legal routes — they are among the strongest in the world — but pair them with unity, the press, and mobilisation, guard your consent against manipulation, and measure success in consent asserted, authorisations set aside or conditioned, delay, and safeguards as well as a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence does not speak for itself. To move an official, a court, or the public, you must turn what you have gathered into clear, specific arguments aimed at the right decision. This section shows how.

From a document to a legal defect. Do not simply hand over the assessment; identify what is wrong with it. If the public participation did not genuinely reach and hear the affected community, the argument is: *the participation the law requires did not happen, and the authorisation built on it is invalid*. If the assessment ignored the water, the health impact, or the climate, the argument is: *the assessment omitted a central impact and cannot lawfully support the authorisation* — the very ground on which a coal plant's authorisation was set aside. Tie every defect to the specific requirement it breaches.

From your rights to a precondition. The record of your informal land rights becomes: *this is land we hold under customary tenure, and under the informal-land-rights law we cannot be deprived of it without our consent — and we do not consent*. This is often the most powerful argument you can make, because it makes the community the decider, as Xolobeni did.

From photographs to a documented violation. Dated, located images of clearing, drilling, or pollution in breach of the authorisation conditions become: *here is proof that the project is operating in violation, at this place, on this date — and here is the action the law requires*.

From testimony to harm. The households' statements become: *this project takes the land, water, and livelihoods these named families depend on, and violates their right to an environment not harmful to their health or well-being*.

From finance to leverage. The ownership and financing record becomes: *this project is run by a company answerable to its investors and to the public, whose reputation this fight touches — and whose financiers have walked away from projects like it before*.

Match the argument to the venue. To the competent authority and on internal appeal, argue the assessment's defects and the failed participation. To the High Court, argue the unlawfulness of the authorisation and the community's consent right. To the Constitutional Court, argue the violation of the Section 24 right. To the press and the public, argue the human story — the land taken, the coast poisoned, the community divided and endangered. The same evidence, aimed differently, does different work.

STEP 5: MEDIA STRATEGY

In South Africa, publicity is power. The country has a large, free, and combative press, an intensely engaged public, and a history in which national and international attention has changed the fate of projects. For a listed or foreign-owned project, coverage reaches investors and parent companies. This step turns your evidence and your story into pressure.

Why Media Matters Here

Xolobeni became a national and international cause — a small coastal community defending its ancestral land against a mining company, with a leader murdered for the fight — and that attention reached the company's investors and the country's conscience, and made the struggle impossible to ignore. Publicity does three things: it raises the political cost of a harmful decision, it reaches the investors and financiers who care about reputation, and it protects the campaigners themselves, because a watched community is harder to intimidate — a protection that matters gravely where activists have been killed.

Building the Story

Lead with the human and the concrete, not the technical. The story is not "the environmental authorisation was procedurally deficient"; it is "the land our families have held for two hundred years, the coast we fish, is to be dug up for a mine, and we were never asked for our consent." Use your strongest material: the dated photographs of the land and coast, the map of the mine over your tenure, the testimony of named community members, the fact — where it applies — that the law requires your consent and you have refused it. Keep the facts scrupulously accurate; your credibility is your armour.

Reaching the Audiences

Work several audiences at once. **Local and national press** carry the story to the provincial capital and the national government, where political pressure builds. **Environmental-justice and human-rights networks** amplify and lend authority. **International media and networks** matter especially for listed or foreign-owned projects, because they reach investors, the parent company, and the global public. **Social and independent digital media** let the community speak in its own voice and document in real time. Provide ready material — clear photographs with captions, short accurate summaries, a map, and a few compelling testimonies — so that journalists and allies can carry your story faithfully. For a listed or foreign-owned project the investor route deserves deliberate attention: a company whose shares trade on a stock exchange answers to institutional investors and lenders increasingly sensitive to human-rights and climate risk, and an accurately told story of a community's consent being trampled, or a defender being threatened, can reach annual meetings, analyst notes, and ethical-investment screens in a way a purely local protest cannot. The reputational exposure of the Xolobeni miner, a foreign-listed company, was part of what kept that fight alive on a global stage.

Discipline and Care

Two cautions. First, accuracy above all: one exaggeration handed to the other side can be used to discredit everything. Second, and gravely, care for people's safety: environmental defenders in South Africa have been threatened and killed, so weigh what you publish, protect vulnerable individuals, publicise threats so that defenders are visibly watched over, and let the community decide together what it is willing to say publicly. Used with discipline, the press is among the most powerful and protective levers a South African community has.

EMAILS & LETTERS

Below are eight templates for the written communications a campaign most often needs. Adapt them to your facts; keep them precise, calm, and specific; and keep copies of everything you send.

8A — Access-to-information request for the assessment and participation record (to the competent authority). *Subject: Request under the access-to-information law — environmental assessment and public-participation record for [project].* "Under the access-to-information law, we, residents of [place], request copies of the environmental impact assessment reports, the environmental-management programme, the record of public participation, and the environmental authorisation and its conditions for [project], [location]. As affected persons, and to protect our environmental right, we are entitled to this information. Please provide it within the period the law allows, or state the legal ground for any exemption. [Contact.]"

8B — Access-to-information request for the mining right and water licence (to the mineral-resources and water departments). *Subject: Request for the mining right and water-use licence — [project].* "Under the access-to-

information law, we request the prospecting/mining-right application and grant for [project], any record of the community consultation or consent relied on, and the water-use licence and its conditions at [location]. [Contact.]"

8C — Comment during the public participation (to the environmental assessment practitioner and authority). *Subject: Registration and objection — public participation for [project].* "We, residents of [place], register as interested and affected parties and object to the authorisation of [project] on the following grounds: [the assessment fails to assess the impact on our land / water / health]; [this participation has not genuinely reached or heard the affected community]; [the project requires land we hold under customary tenure, without our consent]. We ask that these be recorded and addressed and that authorisation be refused or the assessment redone. [Attach evidence.]"

8D — Assertion of community consent under the informal-land-rights law (to the mineral-resources department and the proponent). *Subject: Informal land rights and consent — [project] at [location].* "The land affected by [project] is held by our community under customary/informal tenure protected by the informal-land-rights law. Under that law we may not be deprived of our rights without our free, prior, and informed consent, given by our community in accordance with our custom. Our community has considered [project] and **withholds its consent**. We call on you not to grant or act on any right over our land. [Attach the record of our decision.]"

8E — Internal appeal against the environmental authorisation (to the Minister / MEC). *Subject: Appeal against the environmental authorisation for [project].* "We appeal the environmental authorisation granted to [project] on [date], within the period the law allows, on the grounds that [the public participation was deficient / the assessment ignored key impacts / our consent was required and not obtained]. We ask that the authorisation be set aside or remitted. [Attach the authorisation, the assessment, the participation record, and our evidence.]"

8F — Instruction to public-interest counsel for review / litigation. *Subject: Review of the authorisation and mining right for [project].* "We instruct you to review, and if necessary take to the High Court, the environmental authorisation and mining right for [project], on the grounds that [the authorisation is unlawful] and that [our consent was required under the informal-land-rights law and was not obtained], relying on Section 24 of the Constitution and the framework law's public-interest standing. [Attach evidence.]"

8G — Letter to the press (national or international). *Subject: [Community] moves to protect ancestral land and coast from [project].* "For generations, our community at [place] has held [land/coast] under customary tenure and lived from [farming/fishing]. Now [project], by [company] and [financed by ...], threatens to [mine our land / poison our coast] — without the consent the law says is ours to give. We can provide photographs, documents, a map, and interviews. [Contact.]"

8H — Letter to a public-interest law centre or environmental-justice group seeking partnership. *Subject: Request for support — [project] at [location].* "Our community faces [project] on [our customary land / coast]. We have gathered [the assessment, the authorisation, the mining-right application, photographs, testimonies, the record of our decision] and believe the consent right under the informal-land-rights law and a review of the authorisation apply. We ask for your legal and technical support and help raising the case, and we are ready to work as partners. [Contact and summary of evidence.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not every community has months and a lawyer at the outset. If you must act fast and lean, do these things, in this order, and you will have done the most important work.

1. Pin down the project and its footprint. Get the proponent, the type, and the boundaries. Overlay it, even roughly, on your customary land, the water source, the coast, the protected area. If it needs land you hold under customary tenure, you may already have your strongest lever.

2. Register and request the record. Register as interested and affected parties, and send access-to-information requests for the assessment, the participation record, the authorisation and conditions, the mining right, and the water licence (8A/8B). This preserves your standing and gathers your evidence.

3. Photograph and record everything, with dates and locations. The site, the pegs, the clearing, the land and coast, the affected homes. Dated evidence costs nothing and matters most.

4. Hold the community together and record your decision. If the project needs your customary land, gather the community and record its collective decision to withhold consent (8D), and guard against the jobs, money, and co-opted

leaders that companies use to split you. A united, recorded refusal is a formal legal act, not mere protest.

5. Watch the appeal clock and get a lawyer. An environmental authorisation can be appealed internally and then reviewed in court, but only within strict windows. Contact a public-interest law centre or environmental-justice group (8H, 8E, 8F) at once — these windows are easily lost, and they can move faster than you can alone.

6. Raise the alarm and find your movement — and protect your people. Alert the press (8G) and reach out to an environmental-justice or human-rights organisation, and publicise any threats so defenders are visibly watched over. South Africa's movements have fought mines and coal plants and know the way.

Even with little time, these six steps create a record, exercise your rights, protect the appeal window, keep the community united, and build a coalition — the things every later step is built on.

A final word on the rapid-fire path: in South Africa the two things most worth doing first are protecting the appeal window and protecting the community's unity and its people. A missed appeal deadline can forfeit your sharpest legal weapon; a divided community can be made to "consent" to its own dispossession; and an unprotected defender is in real danger. Speed, unity, and safety, secured early, keep every later option open.

WHEN THE SYSTEM IS TILTED

Much of this guide assumes the ordinary machinery works: assessments are honest, participation is real, consent is sought, courts decide. Often in South Africa they do not. This section is about acting when the system is tilted against you.

The Characteristic South African Problem: Division and Manufactured Consent

South Africa's defining difficulty, alongside powerful backers, is the manufacture of division and false consent. Companies routinely offer jobs, money, and directorships, co-opt or install traditional leaders, and then claim the community has "agreed" — as happened at Xolobeni, where a leader who had opposed the mine came to support it after accepting benefits. The lesson is not that consent is worthless — it is your strongest lever — but that **you must protect the integrity of your community's decision: record it transparently, in accordance with your custom, with broad participation, so that no co-opted individual can purport to give a consent the community never gave.** A community that documents its own genuine, collective refusal is a community whose consent cannot be manufactured away.

When Participation Is a Formality

A second, common form of tilt is public participation reduced to a formality — a notice few see, a meeting held far away, a record that ignores the objections raised. This is not a reason to disengage; it is a defect to document. South African courts treat genuine public participation as a legal requirement, and a participation that did not truly reach and hear the affected community is a flaw that can undo an authorisation. So take part fully, in writing and on the record, and where the participation is hollow, document exactly how.

When Officials Will Not Act

Where an authority grants a defective authorisation or a mining right without consent, escalate methodically. Put every objection and request in writing, so that the failure is documented — the access-to-information law is invaluable here. Use the **internal appeal** to the Minister or MEC within the window, then **review** the decision in the High Court, relying on the Section 24 right and the framework law's broad standing. Take a violation of rights to the **Human Rights Commission**, and administrative failure or corruption to the **Public Protector**. And make the failure public: an authority that ignores a quiet letter may act when the defect is national news and the movements are watching.

When to Reassess

Be honest with your community about the odds. Against a powerful, state-backed project with a sound process, a clean permanent stop may not be achievable, and it is not a failure to say so. In that situation the realistic and still-valuable wins are consent asserted and a mining right blocked or delayed, an authorisation set aside or conditioned, delay that shakes the financing, safeguards and compensation, and exposure that raises the price of the harm. Choose the fight you can win, protect your people — the danger here is real and sometimes lethal — and keep the record, because officials,

governments, and courts change, and a well-documented campaign is ready when they do. And do not underrate delay and cost as outcomes in their own right: a mine or a plant held up for years by a united community and its lawyers is a project whose economics can sour, whose investors can lose patience, and whose backers can move on, so that even short of a clean, final stop, endurance itself can become the lever that defeats the project.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sometimes the tilt is not mere inertia but corruption — an authorisation that should never have issued, an assessment written to order, an official with an interest in the outcome, benefits steered to co-opted leaders. Mining and large infrastructure are chronically exposed to it. This section is about recognising and confronting capture, carefully.

Recognising the Signs

Corruption rarely announces itself, but there are patterns. An authorisation granted despite a plainly inadequate assessment; a "consent" produced by a co-opted or installed leader; a public participation engineered to exclude the affected; a consultant's report that reads as if written for the proponent; an official who moves between the regulator and the industry; benefits, directorships, or a company vehicle flowing to those who switch sides; the sudden reversal of a sympathetic leader's position — each is a warning sign.

Who Is Supposed to Guard Against It

South Africa has machinery against corruption and for transparency. The **anti-corruption bodies and the Public Protector** investigate graft and maladministration, to which licensing, mining rights, and state contracts are notoriously exposed. The **auditor-general** scrutinises the use of public money. The **access-to-information law** lets you extract the record and expose the defect. The **courts** can set aside authorisations and rights tainted by illegality. And the **free press and investigative journalists** have repeatedly exposed captured deals and manufactured consent. These are the venues to which evidence of corruption should be directed.

How to Confront It — Safely

Confronting corruption demands even more care than ordinary campaigning, and in South Africa it can be dangerous. **Document rigorously and factually** — dates, decisions, documents, connections, benefits received — and distinguish always between what you can prove and what you suspect. **Do not make public accusations you cannot substantiate**, both because they can be used to discredit you and because they can expose you to legal and physical risk. **Route serious evidence to the proper bodies** — the anti-corruption bodies, the Public Protector, the courts, and established investigative journalists — rather than confronting powerful interests alone. **Protect the people involved**, especially insiders and witnesses, and take threats seriously. And **lean on your allies**: public-interest law centres, environmental-justice organisations, and journalists know how to handle such material and can shield individuals. Corruption is real in South African project approvals, and it can be confronted — the transparency and judicial tools exist — but it must be confronted with evidence, through institutions, and with the utmost attention to the safety of everyone involved.

INTEGRATION & TIMELINE

The steps in this guide are not a menu from which to pick one; they are strands to be woven together. This section shows how they fit, and over what kind of time.

How the Strands Reinforce One Another

Documentation feeds everything: it is the basis of the objection, the internal appeal, the review, the consent argument, and the press story. Organising — and above all a united community — gives the documentation weight and guards the consent against manipulation. The legal routes — the consent right, the review of the authorisation, the constitutional right — turn the record into binding decisions. The press turns it into political and reputational cost that reaches investors, and it helps protect endangered defenders. Each strand is stronger for the others: a review amplified by the press and backed

by a united community that has recorded its refusal is a different thing from a lonely lawsuit, and a consent claim reinforced by national attention is far harder to override — which is precisely the combination that won Xolobeni. And the converse holds: a lawsuit with no united community behind it can be undermined by a manufactured "consent," and a protest with no legal case behind it can be dispersed without lasting effect. It is the weaving together — a united community, a recorded refusal, strong documentation, the right legal routes, and sustained publicity — that gives a community the weight to prevail, and that is the real lesson of how Xolobeni was fought and won.

A Realistic Timeline

Expect a long campaign, and be ready for appeals. In the **first weeks**, pin down the project, register as affected parties, send the information requests, gather the initial documentation, take part in any public participation, and reach out to allies. In the **first few months**, build and unite the coalition, record the community's decision on consent, obtain and analyse the assessment and the mining-right application, and — if an authorisation is granted — lodge the internal appeal within its window. Over the **following one to several years**, pursue the review and, where the constitutional right or the consent question is engaged, the higher courts; sustain the press and public campaign; and be ready to defend a win on appeal. The Xolobeni fight ran for many years, and the consent principle it won is still defended. Build for endurance and unity, mark and celebrate the interim wins — a set-aside authorisation, a blocked mining right, a recorded refusal upheld, a financier that walks away — and understand that in South Africa the decisive struggle is often to assert consent, hold the community together, and see the case through.

Holding Two Truths

Throughout, hold the two truths this guide began with. South Africa gives organised communities genuine, powerful levers — a justiciable environmental right, public participation whose breach undoes an authorisation, a framework law that lets anyone litigate for the environment, a consent right over customary land, a strong access-to-information law, independent courts up to a Constitutional Court, and deep environmental-justice allies. And South Africa's central weakness is powerful backers, manufactured division and false consent, and real, sometimes lethal, danger to those who resist. A community that understands both will neither despair nor overpromise. It will use every lever, assert and protect its consent, win where it can, hold together, protect its people, and keep the record — knowing that in South Africa a small community once won the right to say no to a mine.

FINAL ASSESSMENT

The honest bottom line for a South African community facing a destructive project is this. **You are not powerless, and you are not without precedent — South Africa is a place where a small coastal community won a court ruling that they cannot be mined without their free, prior, and informed consent.** The tools are real: a justiciable constitutional right to an environment not harmful to health or well-being, public participation whose breach can undo an authorisation, a framework law that lets any person litigate in the public interest, an informal-land-rights law that requires community consent before deprivation of customary land, a strong access-to-information law, and independent courts up to a Constitutional Court, with deep environmental-justice allies.

But the tools demand unity and courage to make them work. South Africa's characteristic problem is not the absence of rights but powerful backers, the manufacture of division and false consent, participation reduced to a formality, and real, sometimes lethal, danger to those who resist. So temper hope with realism. Where the project needs your consent over customary land, or the authorisation is genuinely defective, and you can hold together and reach the courts and the press, your chances of stopping, stalling, or reshaping a project are real — Xolobeni is the proof. Where powerful interests and the state back the project and the process was sound, an outright stop is hard, and the realistic wins are consent asserted and a mining right blocked or delayed, an authorisation set aside or conditioned, delay, safeguards, and exposure.

Whatever your situation, the method is the same: identify the project and its weakest link precisely — most often the consent you can withhold over customary land, or a defect in the authorisation; document relentlessly, using the access-to-information law to extract the record; assert the rights the law gives you — the public participation, the Section 24 right, and above all your community's consent; organise a broad, united, and enduring coalition, and guard it against division and manufactured consent; bring in the public-interest lawyers and the environmental-justice movement; appeal and review a defective authorisation within its windows and, where your consent or your constitutional right is at stake, take it to the higher courts; take the story to the press; and protect your people. Combine the strands, hold together, keep the record, and endure. The Amadiba community of Xolobeni, a few hundred households on the Wild Coast, showed South Africa and the world that a united community with the law on its side can win the right to say no. Their fight was long,

dangerous, and it cost a leader his life; the consent principle they won is still defended against those who would explain it away. And yet it was won, and it now stands as a landmark of South African law that reaches every community holding land under customary tenure. That a few hundred households on the Wild Coast could establish, against a mining company and its government backers, that they cannot be mined without their consent is the clearest proof that in South Africa a united community with the law on its side can prevail. Their fight is your reason to begin, and your reason to endure.